

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ARIANTCH HICKS,

Plaintiff,

-against-

Plaintiff designates
New York County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

THE CITY OF NEW YORK,
NYPD DETECTIVE YDREESAH BEY,
NYPD OFFICER DANIEL COY,
NYPD DETECTIVE JOHN O'LEARY,
NYPD DETECTIVE JOSE ROJAS,
NYPD OFFICER KEVIN HARDING,
NYPD DETECTIVE LUIS FERNANDEZ and
NYPD DETECTIVE SHAWN NANDKISURE,

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 18, 2018

SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

THE CITY OF NEW YORK, 100 Church St., New York, NY 10007

NYPD DETECTIVE YDREESAH BEY, c/o NYPD Force Investigation Division, 235 E. 20th St., New York, NY 10003

NYPD OFFICER DANIEL COY, c/o NYPD 26th Pct., 520 W 126th St., New York, NY 10027

NYPD DETECTIVE JOHN O'LEARY, c/o NYPD Manhattan Special Victims Squad, One Police Plaza, New York, NY 10007

NYPD DETECTIVE JOSE ROJAS, c/o NYPD 26th Pct., 520 W 126th St., New York, NY 10027

NYPD OFFICER KEVIN HARDING, c/o NYPD Warrant Section, 300 Gold St., Brooklyn, NY 11201

NYPD DETECTIVE LUIS FERNANDEZ, c/o NYPD 26th Pct., 520 W 126th St., New York, NY 10027

NYPD DETECTIVE SHAWN NANDKISURE, c/o NYPD 26th Pct., 520 W 126th St., New York, NY 10027

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ARIANTCH HICKS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE YDREESAH BEY,
NYPD OFFICER DANIEL COY,
NYPD DETECTIVE JOHN O'LEARY,
NYPD DETECTIVE JOSE ROJAS,
NYPD OFFICER KEVIN HARDING,
NYPD DETECTIVE LUIS FERNANDEZ and
NYPD DETECTIVE SHAWN NANDKISURE,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of New York, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this

action is being commenced within one year and ninety days after the state-law causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the "NYPD").

5. That at all times herein mentioned, defendant NYPD DETECTIVE YDREESAH BEY (hereinafter "Bey") was and is a police detective employed by the NYPD.

6. That at all times herein mentioned, Bey was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Bey was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD OFFICER DANIEL COY (hereinafter "Coy") was and is a police officer employed by the NYPD.

9. That at all times herein mentioned, Coy was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Coy was acting under color of state law.

11. That at all times herein mentioned, defendant NYPD DETECTIVE JOHN O'LEARY (hereinafter "O'Leary") was and is a police detective employed by the NYPD.

12. That at all times herein mentioned, O'Leary was acting within the course and scope of his employment with the NYPD.

13. That at all times herein mentioned, O'Leary was acting under color of state law.

14. That at all times herein mentioned, defendant NYPD DETECTIVE JOSE ROJAS (hereinafter "Rojas") was and is a police detective employed by the NYPD.

15. That at all times herein mentioned, Rojas was acting within the course and scope of his employment with the NYPD.

16. That at all times herein mentioned, Rojas was acting under color of state law.

17. That at all times herein mentioned, defendant NYPD OFFICER KEVIN HARDING (hereinafter "Harding") was and is a police officer employed by the NYPD.

18. That at all times herein mentioned, Harding was acting within the course and scope of his employment with the NYPD.

19. That at all times herein mentioned, Harding was acting under color of state law.

20. That at all times herein mentioned, defendant NYPD DETECTIVE LUIS FERNANDEZ (hereinafter “Fernandez”) was and is a police detective employed by the NYPD.

21. That at all times herein mentioned, Fernandez was acting within the course and scope of his employment with the NYPD.

22. That at all times herein mentioned, Fernandez was acting under color of state law.

23. That at all times herein mentioned, defendant NYPD DETECTIVE SHAWN NANDKISURE (hereinafter “Nandkisure”) was and is a police detective employed by the NYPD.

24. That at all times herein mentioned, Nandkisure was acting within the course and scope of his employment with the NYPD.

25. That at all times herein mentioned, Nandkisure was acting under color of state law.

THE FACTS

26. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

27. That on or about August 18 2016, in the County of New York, City and State of New York, officers and detectives with the NYPD, including but not limited to Bey, Coy, O’Leary, Rojas, Harding, Fernandez, and Landkisure (hereinafter referred to collectively as “the officers”) forcibly seized and searched plaintiff without a warrant, without justification, without consent, and without probable cause or reasonable suspicion to believe that plaintiff committed or was about to commit any crime.

28. That after seizing and searching plaintiff, the officers detained, handcuffed, arrested, and imprisoned plaintiff and forcibly transported plaintiff to a police precinct.

29. That on or about August 18, 2016, the officers initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging and/or causing plaintiff to be charged with various crimes, including rape, kidnapping, assault, and unlawful imprisonment, of which plaintiff was innocent and of which the officers knew plaintiff to be innocent.

30. That on or about August 23, 2016, the officers initiated and/or caused to be initiated a further criminal prosecution of plaintiff, charging and/or causing plaintiff to be charged with the additional crimes of assault, criminal obstruction of breathing or blood circulation, criminal mischief, and unlawful imprisonment.

31. That in support of the aforesaid prosecution, Bey signed a supporting deposition and Criminal Court Complaint in which he made accusations against plaintiff that were false and that he knew to be false.

32. That in support of the aforesaid prosecution, Bey and the officers knowingly conveyed false information and accusations about plaintiff to fellow officers and to the Office of the District Attorney.

33. That the aforementioned false information and accusations included, but were not limited to, accusations that a purported victim told police that she was raped inside plaintiff's apartment, that plaintiff aided and abetted the rape, that plaintiff forcibly held the victim inside plaintiff's bathroom, and that plaintiff prevented the purported victim from calling "911" or otherwise receiving assistance from police and "911."

34. That the aforesaid false information and accusations constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision

on plaintiff's guilt or innocence.

35. That in support of the aforesaid prosecution, the officers also knowingly withheld exculpatory evidence from plaintiff and from the Office of the District Attorney.

36. That the withheld exculpatory evidence included, but was not limited to, documentation of text messages, documentation of telephone calls to and from "911," statements made by the purported victim, and evidence of the purported victim's criminal background.

37. That as a result of the actions of the officers, plaintiff was incarcerated for a period of approximately six days.

38. That the officers did not have probable cause to believe that plaintiff was guilty of any of the crimes with which he was charged.

39. That the officers did not have probable cause to believe that the prosecution against plaintiff would succeed, since they knew that the purported evidence upon which the prosecution was based was obtained by the officers illegally and/or by other improper means.

40. That as a result of the false criminal charges that were initiated against plaintiff by the officers, the false information and accusations made by the officers, and the withholding of exculpatory evidence by the officers, plaintiff was required to make numerous court appearances and suffered a deprivation of his liberty.

41. That on or about October 17, 2017, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

42. That at all times herein mentioned, each of the officers observed and/or had knowledge of the illegal and unconstitutional conduct of his fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, but deliberately failed to intervene.

43. That defendants' actions were intentional, malicious, and without excuse or

justification.

44. That as a result of the actions of defendants, plaintiff sustained severe emotional distress and loss of liberty, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

45. That all of the causes of action herein fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: Illegal Search and Seizure)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforementioned actions of the officers in forcibly seizing and searching plaintiff without a warrant and then forcibly detaining plaintiff constituted unlawful searches and seizures of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: False Arrest/False Imprisonment)

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforementioned actions of the officers in arresting plaintiff without a warrant and without probable cause, and thereafter imprisoning plaintiff and/or causing plaintiff to be imprisoned, constituted unlawful seizures of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to

recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under State Law)

50. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

51. That the aforementioned actions of the officers in prosecuting plaintiff and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent constituted a malicious prosecution of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: Malicious Prosecution)

52. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

53. That the aforementioned actions of the officers in prosecuting plaintiff and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent and with charges on which the officers knew the prosecution likely would not succeed constituted a malicious prosecution of plaintiff and an unlawful seizure of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

54. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

55. That the aforesaid actions by the officers in conveying false information and accusations about plaintiff constituted a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on *Brady* Violation)

56. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

57. That the aforesaid actions by the officers in withholding exculpatory evidence and information constituted a violation of plaintiff's rights under the Fourteenth Amendment to the United States Constitution and under *Brady v. Maryland*, 373 U.S. 83, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Failure to Intervene)

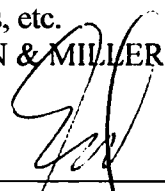
58. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

59. That as a result of the deliberate failure of the officers to intervene, plaintiff sustained the injuries alleged herein and is entitled to recover damages against the officers under 42 U.S.C. § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42 U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
April 18, 2018

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) currently is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
April 18, 2018



EDWARD SIVIN

Index No.

Year 2018

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COUNTY OF NEW YORK

ARIANTCH HICKS,

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VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

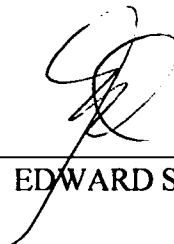
New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
April 18, 2018